

SOLVED PRACTICE WORKBOOK

Special Provisions - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Special Provisions	
1. PART XII: CONSTITUTIONAL ASYMMETRY BY DESIGN Part XII: Constitutional Asymmetry By Design operates through	22. WHY ASYMMETRIC FEDERALISM EXISTS Why Asymmetric Federalism Exists operates through sub-sets
2. ARTICLE 370 BEFORE 2019 Article 370 Before 2019 operates through presidential Order and	23. ARTICLE 354 Article 354 operates through the 1960 Constitution, Application Order
3. ARTICLE 370(a) AND THE CONSTITUENT ASSEMBLY PROBLEM Article 370(a) and The Constituent Assembly Problem operates	24. THE 2019 CONSTITUTIONAL INSTRUMENTS The 2019 Constitutional Instruments operates through U.O. 272 C.O.
4. RENDERED INOPERATIVE, NOT DELETED Rendered Inoperative, Not Deleted operates through "Not Operative"	25. IN RE ARTICLE 370 (11 DECEMBER 2020): CORE HOLDINGS In Re Article 370 (11 December 2020): Core Holdings operates
5. ELECTIONS AND STATEHOOD AFTER THE JUDGMENT Elections And Statehood After The Judgment operates through the	26. J&K UNION TERRITORY LEGISLATURE J&K Union Territory Legislature operates through the Reorganisation
6. LADAKH'S CURRENT POSITION Ladakh's Current Position operates through presidential, J&K Order	27. ARTICLE 371 FAMILY: MASTER MAP Article 371 Family: Master Map operates through the Family map
7. ARTICLE 371: MAHARASHTRA AND GUJARAT Article 371: Maharashtra And Gujarat operates through a Presidential	28. ARTICLE 371A: NAGALAND Article 371A: Nagaland operates through application in the protected
8. ARTICLE 371B: ASSAM Article 371B: Assam operates through the President's discretion	29. ARTICLE 371C: MANIPUR Article 371C: Manipur operates through a Presidential order resolution
9. ARTICLES 371D AND 371E: ANDHRA PRADESH AND TELANGANA Articles 371D And 371E: Andhra Pradesh And Telangana operates	30. ARTICLE 371G: SIKKIM Article 371G: Sikkim operates through a provisions representation, law
10. ARTICLE 371G: MIZORAM Article 371G: Mizoram operates through parliamentary law, 31 Oct	31. ARTICLES 371H AND 371I Articles 371H And 371I operates through the National Council
11. ARTICLE 371J: KARNATAKA Article 371J: Karnataka operates through presidential order law	32. STRONGEST ARTICLE 371 PROTECTIONS Strongest Article 371 Protections operates through their strength
12. ARTICLE 371 VERSUS FIFTH SCHEDULE Article 371 Versus Fifth Schedule operates through part 5th State	33. ARTICLE 371 VERSUS SIXTH SCHEDULE Article 371 Versus Sixth Schedule operates through Sixth Schedule
13. FIFTH AND SIXTH SCHEDULE RAPID COMPARISON Fifth And Sixth Schedule Rapid Comparison operates through 5th, 6th	34. NORTH EASTERN COUNCIL North Eastern Council operates through the North Eastern Council
14. ASYMMETRY AND EQUALITY Asymmetry And Equality operates through article 34 analysis table	35. ASYMMETRY AND NATIONAL INTEGRATION Asymmetry And National Integration operates through
15. CONSENT AND CONSULTATION Consent And Consultation operates through article 371A and 371C	36. LAND, RESOURCES AND INDIGENOUS PROTECTION Land, Resources And Indigenous Protection operates through article
16. CURRENT LADAKH DEBATE Current Ladakh Debate operates through Sixth Schedule table, a	37. CURRENT J&K FEDERAL QUESTION Current J&K Federal Question operates through an internal order
17. REFORM PRINCIPLES FOR SPECIAL PROVISIONS Reform Principles For Special Provisions operates through table	38. PART XII AND BASIC STRUCTURE Part XII And Basic Structure operates through Definition and part XII
18. FULL MEMORY MAP Full Memory Map operates through article, table, map, table, map	

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity 22 - Special Provisions - Complete Topic Package 5

BASIC MCQS / REMEDIATION 5

Original MCQ loop - strict A -> B -> C -> D rotation	5
OM1. Part location	5
OM2. Article 370 status	5
OM3. Article 35A source	5
OM4. Reorganisation	5
OM5. 2023 judgment	5
OM6. Internal sovereignty	6
OM7. Constituent Assembly	6
OM8. Statehood question	6
OM9. J&K Assembly	6
OM10. Ladakh	6
OM11. Article 371 States	6
OM12. Article 371	7
OM13. Nagaland	7
OM14. Assam committee	7
OM15. Manipur	7
OM16. AP and Telangana	7
OM17. Sikkim	7
OM18. Mizoram	7
OM19. Arunachal Pradesh	8
OM20. Goa	8
OM21. Karnataka	8
OM22. Strongest consent shields	8
OM23. Fifth Schedule	8
OM24. Sixth Schedule States	8
OM25. Fifth Schedule institution	9
OM26. Sixth Schedule	9

OM27. Article 371 versus Sixth Schedule	9
OM28. Ladakh demand	9
OM29. NEC	9
OM30. NEC membership	9
OM31. Differentiated rights	10
OM32. Basic Structure	10
OM33. Article 371A scope	10
OM34. Article 371E	10
OM35. Article 370 judgment caution	10
OM36. Asymmetric federalism	10
Remedial MCQs - strict A -> C -> A -> D rotation	11
R1. Status trap	11
R2. Judgment trap	11
R3. Statehood trap	11
R4. Ladakh trap	11
R5. Nagaland trap	11
R6. Committee trap	11
R7. Local-opportunity trap	12
R8. Schedule trap	12
R9. Fifth Schedule declaration	12
R10. NEC trap	12
R11. Equality trap	12
R12. Source trap	12
PYQS AND ANSWER PRACTICE	13
PYQ, practice and solved workbook	13
Verified/cross-owned Mains PYQ	13
PYQ 1 - UPSC GS-II 2025, Q4 - direct application	13
Routed Prelims demands - provenance without invented answer letters	13
Prelims route 1 - 2024 GS-I Q70	13
Prelims route 2 - 2022 GS-I Q73 - cross-owned	14
Prelims route 3 - 2025 GS-I Q56 - cross-owned	14
Prelims route 4 - 2026 GS-I Q57 - provisional cross-owner	14

Original solved Mains practice	14
M1. "Asymmetric federalism strengthens Indian unity through constitutional difference." Discuss. (10 marks, 150 words) . . .	14
M2. Critically examine the 2019 changes to Article 370 in light of the 2023 Supreme Court judgment. (15 marks, 250 words) .	15
M3. Compare Articles 371A and 371G. (10 marks, 150 words)	15
M4. Does differentiated regional protection conflict with single citizenship and equality? Examine. (15 marks, 250 words) . . .	16
M5. Compare Article 371 protections with the Fifth and Sixth Schedules. (15 marks, 250 words)	16
M6. Assess the constitutional and political case for Sixth Schedule protection in Ladakh. (15 marks, 250 words)	17
M7. "The unresolved Statehood question is now more important than the settled Article 370 question." Comment. (20 marks, 250 words)	17
M8. Evaluate whether regional-development clauses under Articles 371 and 371J deliver substantive federal equality. (20 marks, 250 words)	18
M9. Explain how amendment origins and constitutional actors shape the Article 371 family. (10 marks, 150 words)	18

Polity 22 - Special Provisions - Complete Topic Package

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Part location

Articles 370 and 371 provisions are located in:

A. Part XXI. B. Ninth Schedule. C. Part X only. D. Part III.

Answer: A.

Explanation: [FACT] Part XXI contains temporary, transitional and special provisions.

OM2. Article 370 status

The most accurate description is:

A. deleted entirely from the printed Constitution. B. rendered inoperative through the 2019 process. C. converted into Article 371. D. fully operational after 2023.

Answer: B.

Explanation: [FACT] Inoperability is not textual deletion.

OM3. Article 35A source

Article 35A entered through:

A. an ordinary J&K statute. B. the First Amendment. C. the 1954 Presidential Order. D. a Supreme Court judgment.

Answer: C.

Explanation: [FACT] It was not a Parliament-passed constitutional amendment.

OM4. Reorganisation

The 2019 Act created:

A. two full States. B. one UT without legislature. C. J&K State and Ladakh State. D. J&K UT with legislature and Ladakh UT without legislature.

Answer: D.

Explanation: [FACT] Effective from 31 October 2019.

OM5. 2023 judgment

The Court held Article 370 was:

A. temporary. B. a treaty. C. outside judicial review. D. a permanent Basic Structure provision.

Answer: A.

Explanation: [FACT] The Court upheld the abrogation.

OM6. Internal sovereignty

The Court held J&K:

A. retained treaty sovereignty. B. retained no internal sovereignty distinct from other States. C. remained a dominion. D. could veto every Union law.

Answer: B.

Explanation: [FACT] Accession and constitutional integration were controlling.

OM7. Constituent Assembly

The Court held presidential Article 370(3) power:

A. required a referendum. B. expired in 1957. C. survived dissolution of the J&K Constituent Assembly. D. belonged to the Governor.

Answer: C.

Explanation: [FACT] Recommendation was not a continuing precondition.

OM8. Statehood question

Which is accurate?

A. Court finally upheld every State-to-UT conversion. B. Statehood was restored in 2024. C. Court set 2025 as deadline. D. Statehood remains pending and no fixed judicial deadline was imposed.

Answer: D.

Explanation: [CURRENT/LIMIT] The Union assurance was recorded.

OM9. J&K Assembly

The present J&K Assembly belongs to:

A. a Union Territory with legislature. B. a full State. C. an autonomous district. D. a Sixth Schedule region.

Answer: A.

Explanation: [FACT] Statehood is pending.

OM10. Ladakh

Ladakh currently is:

A. a State. B. a Union Territory without legislature. C. a Sixth Schedule autonomous State. D. governed under Article 371A.

Answer: B.

Explanation: [CURRENT] Demands have not changed constitutional status.

OM11. Article 371 States

The Article 371 family covers special provisions for:

A. all States. B. every Union Territory. C. 12 States. D. only North-Eastern States.

Answer: C.

Explanation: [FACT] The family extends from Maharashtra/Gujarat to Karnataka and multiple NE States.

OM12. Article 371

Development boards for Vidarbha/Marathwada and Saurashtra/Kutch arise under:

A. 371J only. B. 371A. C. 371D. D. Article 371.

Answer: D.

Explanation: [FACT] It concerns Maharashtra and Gujarat.

OM13. Nagaland

Article 371A applies to:

A. Nagaland. B. Mizoram. C. Manipur. D. Assam.

Answer: A.

Explanation: [FACT] It protects Naga custom, land and specified justice fields.

OM14. Assam committee

The Tribal Areas committee provision is:

A. 371H. B. 371B. C. 371I. D. 371C.

Answer: B.

Explanation: [FACT] Article 371B concerns Assam.

OM15. Manipur

Hill Areas Committee is associated with:

A. 371J. B. 371G. C. 371C. D. 371F.

Answer: C.

Explanation: [FACT] It includes Governor special responsibility/reporting.

OM16. AP and Telangana

Equitable local opportunity in public employment and education is primarily:

A. 371A. B. 371I. C. 371F. D. 371D.

Answer: D.

Explanation: [FACT] The framework applies to Andhra Pradesh and Telangana.

OM17. Sikkim

Article 371F concerns:

A. Sikkim. B. Karnataka. C. Goa. D. Arunachal Pradesh.

Answer: A.

Explanation: [FACT] It accompanied Sikkim's integration.

OM18. Mizoram

Customary-law and land consent protection is found in:

A. 371B. B. 371G. C. 371I. D. 371H.

Answer: B.

Explanation: [FACT] Article 371G resembles 371A in protected subjects.

OM19. Arunachal Pradesh

Governor law-and-order responsibility is under:

A. 371J. B. 371F. C. 371H. D. 371D.

Answer: C.

Explanation: [FACT] The Assembly minimum is also 30.

OM20. Goa

Article 371I provides principally:

A. a Hill Areas Committee. B. land-law consent. C. local cadres. D. minimum Assembly strength of 30.

Answer: D.

Explanation: [FACT] It is a narrow institutional provision.

OM21. Karnataka

Article 371J concerns:

A. Kalyana Karnataka regional development and local opportunity. B. Naga customary law. C. Saurashtra only. D. Goa's Assembly.

Answer: A.

Explanation: [FACT] Inserted by the 98th Amendment.

OM22. Strongest consent shields

Which pair requires Assembly decision for specified custom/land parliamentary laws?

A. 371B and 371C. B. 371A and 371G. C. 371 and 371J. D. 371H and 371I.

Answer: B.

Explanation: [FACT] Nagaland and Mizoram.

OM23. Fifth Schedule

Scheduled Areas are declared by:

A. State Assembly. B. Governor. C. President. D. Tribes Advisory Council.

Answer: C.

Explanation: [FACT] Consultation with Governor occurs where relevant.

OM24. Sixth Schedule States

The correct group is:

A. Nagaland, Manipur, Arunachal, Sikkim. B. all NE States. C. Assam, Nagaland, Mizoram, Manipur. D. Assam, Meghalaya, Tripura, Mizoram.

Answer: D.

Explanation: [FACT] Use AMTM.

OM25. Fifth Schedule institution

The advisory institution is:

A. Tribes Advisory Council. B. Inter-State Council. C. Autonomous District Council. D. North Eastern Council.

Answer: A.

Explanation: [FACT] TAC does not legislate.

OM26. Sixth Schedule

Autonomous District Councils may exercise:

A. only advisory functions. B. specified legislative, judicial and fiscal powers. C. no taxing power. D. presidential election powers.

Answer: B.

Explanation: [FACT] Powers are limited to Schedule subjects.

OM27. Article 371 versus Sixth Schedule

Which is correct?

A. They are the same mechanism. B. Article 371 applies only to autonomous councils. C. They are distinct constitutional mechanisms. D. Sixth Schedule is part of Article 371A.

Answer: C.

Explanation: [FACT] Part XXI differs from Article 244 schedules.

OM28. Ladakh demand

As of 28 August 2026:

A. Ladakh is a State. B. Sixth Schedule automatically applies. C. Article 371K protects it. D. Statehood/Sixth Schedule demands remain unenacted.

Answer: D.

Explanation: [CURRENT] No constitutional change has been enacted.

OM29. NEC

The North Eastern Council is:

A. a statutory body. B. an Article 371 body. C. a constitutional court. D. a Sixth Schedule district council.

Answer: A.

Explanation: [FACT] It arises under the NEC Act, 1971.

OM30. NEC membership

The NEC framework includes:

A. only Governors. B. Governors, Chief Ministers and presidential nominees. C. Autonomous Council chiefs only. D. only MPs.

Answer: B.

Explanation: [FACT] Ex-officio Union leadership was added under the amended framework.

OM31. Differentiated rights

The strongest constitutional defence is:

A. every difference is permanent. B. special provisions create separate sovereignty. C. tailored protection can advance substantive equality and integration. D. uniformity is unconstitutional.

Answer: C.

Explanation: [ANALYSIS] Purpose and proportionality justify differentiation.

OM32. Basic Structure

Which is accurate?

A. Part XXI is outside review. B. Federalism is not Basic Structure. C. Every Article 371 clause is unamendable. D. Federalism is Basic Structure, but individual special provisions are not automatically unamendable.

Answer: D.

Explanation: [FACT/ANALYSIS] Review concerns the federal principle and amendment effect.

OM33. Article 371A scope

Its Assembly shield applies:

A. only to four specified subject groups. B. only during emergency. C. only to taxation. D. to every Union law.

Answer: A.

Explanation: [FACT] It is strong but subject-specific.

OM34. Article 371E

It empowers Parliament concerning:

A. Goa Assembly strength. B. a Central University in Andhra Pradesh. C. J&K Statehood. D. district councils.

Answer: B.

Explanation: [FACT] Do not confuse with 371D local-opportunity rules.

OM35. Article 370 judgment caution

Which statement is most accurate?

A. Court deleted Article 370 text. B. Court fixed a Statehood date. C. Court upheld abrogation but did not finally adjudicate the UT-conversion validity. D. Court restored Article 35A.

Answer: C.

Explanation: [FACT/LIMIT] The Union assurance made a final ruling on J&K conversion unnecessary.

OM36. Asymmetric federalism

The best description is:

A. temporary emergency alone. B. multiple sovereignties outside India. C. identical rules for all regions. D. constitutionally tailored autonomy/protection within one Union.

Answer: D.

Explanation: [ANALYSIS] Difference operates inside constitutional unity.

Remedial MCQs - strict A -> C -> A -> D rotation

R1. Status trap

Article 370 was:

A. rendered inoperative, not textually deleted. B. restored in 2024. C. moved to Part III. D. replaced by Sixth Schedule.

Answer: A.

Remedy: Separate printed text from legal operability.

R2. Judgment trap

The 2023 Court described Article 370 as:

A. treaty immune from change. B. temporary. C. ordinary statute. D. permanent sovereignty guarantee.

Answer: B.

Remedy: Use the exact holding.

R3. Statehood trap

J&K Statehood:

A. was restored with elections. B. has a judicial deadline. C. remains pending. D. is barred forever.

Answer: C.

Remedy: Elections and Statehood are separate.

R4. Ladakh trap

Ladakh:

A. has an Assembly. B. is already Sixth Schedule. C. is under Article 371A. D. remains a UT without legislature.

Answer: D.

Remedy: Demands are not enacted status.

R5. Nagaland trap

The land/custom shield belongs to:

A. Article 371A. B. 371B. C. 371I. D. 371C.

Answer: A.

Remedy: A = Nagaland; G = Mizoram.

R6. Committee trap

Assam's Tribal Areas Committee is:

A. 371H. B. 371B. C. 371C. D. Fifth Schedule TAC.

Answer: B.

Remedy: Article 371B is an Assembly committee, not the Fifth Schedule TAC.

R7. Local-opportunity trap

AP/Telangana provision:

A. 371F. B. 371I. C. 371D. D. 371J.

Answer: C.

Remedy: D = local cadres/opportunity.

R8. Schedule trap

Sixth Schedule applies in:

A. Ladakh automatically. B. all tribal States. C. ten Fifth Schedule States. D. Assam, Meghalaya, Tripura and Mizoram.

Answer: D.

Remedy: AMTM.

R9. Fifth Schedule declaration

Scheduled Areas are declared by:

A. President. B. TAC. C. Parliament alone. D. Governor.

Answer: A.

Remedy: Governor has reporting/regulation roles, not declaration.

R10. NEC trap

NEC is:

A. constitutional. B. statutory. C. a State legislature. D. judicial.

Answer: B.

Remedy: NEC Act, 1971.

R11. Equality trap

Special provisions may be defended because:

A. federalism requires secession. B. every resident has separate citizenship. C. tailored safeguards can serve substantive equality. D. Article 14 never applies.

Answer: C.

Remedy: Different treatment needs a legitimate protective/developmental purpose.

R12. Source trap

Article 35A came from:

A. Reorganisation Act. B. 36th Amendment. C. Article 371J. D. 1954 Presidential Order.

Answer: D.

Remedy: It was not enacted through Article 368.

PYQS AND ANSWER PRACTICE

PYQ, practice and solved workbook

Verified/cross-owned Mains PYQ

PYQ 1 - UPSC GS-II 2025, Q4 - direct application

Verified neutral demand: Discuss the nature of the Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganisation Act, 2019, and briefly describe its powers and functions. **10 marks | 150 words | Primary owner: Union Territories; direct application here**

Model answer

Claim: [FACT] The post-2019 Jammu and Kashmir Assembly is an elected legislature of a Union Territory, not the legislature of a full State.

Named evidence: The Jammu and Kashmir Reorganisation Act, 2019 created J&K as a UT with a legislature and Ladakh as a UT without one. The J&K Assembly makes laws within the Act's permitted State-List and Concurrent-List fields, while public order and police remain outside its ordinary competence. It votes the budget, authorises expenditure, debates public policy and holds the Chief Minister-led Council of Ministers politically accountable.

Analysis: The Assembly restores representative government and regional voice after the 2019 reorganisation, but Parliament's overriding competence and the Lieutenant Governor/Union architecture make it weaker than a State legislature.

Current qualification: [CURRENT] Elections were held in 2024, but Statehood remains pending. [LIMIT] The 2023 Article 370 judgment recorded restoration at the earliest without fixing a deadline.

Verdict: J&K now has democratic self-government within a Union Territory framework; full federal parity awaits Statehood restoration.

Evidence chain: Reorganisation Act -> UT with legislature -> fields/exclusions -> financial/accountability functions -> 2024 election -> pending Statehood.

Why this earns marks: It identifies the Assembly's legal nature, fields, exclusions, financial/control functions and current qualification within 150 words.

How to improve this answer: Compress the institutional comparison into a two-column State-versus-UT contrast and retain one sentence on Parliament/LG override.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2024 GS-I Q70

Verified neutral demand: Composition of the North Eastern Council.

Doctrinal solution

- [FACT] NEC is statutory under the North Eastern Council Act, 1971.
- [FACT] It includes Governors and Chief Ministers of the region's States and three presidential nominees.
- [FACT] The Union Home Minister and DoNER Minister hold the current ex-officio leadership roles under the amended framework.
- [LIMIT] NEC is not an Article 371 constitutional body.

Elimination rule: Reject options treating NEC as a Sixth Schedule council or Article 371 committee.

Prelims route 2 - 2022 GS-I Q73 - cross-owned

Verified neutral demand: Consequences of Fifth Schedule status for tribal areas.

Doctrinal solution

- [FACT] President declares Scheduled Areas.
- [FACT] Governor reports annually and may make land/money-lending protective regulations subject to presidential assent.
- [FACT] Union may issue directions to the State.
- [FACT] Tribes Advisory Council is advisory.

Elimination rule: Do not confuse Fifth Schedule supervised protection with Sixth Schedule autonomous councils.

Prelims route 3 - 2025 GS-I Q56 - cross-owned

Verified neutral demand: Executive power and Union role in a Fifth Schedule Scheduled Area.

Doctrinal solution

- [FACT] State executive power continues in Scheduled Areas.
- [FACT] Union executive power extends to giving directions concerning administration.
- [LIMIT] This is not automatic Union takeover or direct day-to-day administration.

Elimination rule: Reject both "no Union role" and "automatic Union administration."

Prelims route 4 - 2026 GS-I Q57 - provisional cross-owner

Verified neutral demand: Constitutional safeguards, schedules, taxation and local representation for SCs/STs.

Doctrinal solution

- [FACT] Fifth/Sixth Schedules operate under Article 244; Sixth Schedule councils possess specified taxation powers.
- [FACT] Legislative and local-body reservations arise from separate constitutional provisions.
- [LIMIT] The local 2026 key is provisional; no official answer letter is inferred.

Elimination rule: Do not attribute Sixth Schedule fiscal powers to a Fifth Schedule Tribes Advisory Council.

Original solved Mains practice

M1. "Asymmetric federalism strengthens Indian unity through constitutional difference."

Discuss. (10 marks, 150 words)

Model answer

Claim: [ANALYSIS] Indian unity is not based on institutional uniformity; Part XXI uses tailored guarantees to integrate historically and culturally distinct regions.

Named evidence: Articles 371A and 371G protect customary law and land through Assembly consent. Articles 371 and 371J address regional imbalance. Articles 371B and 371C create tribal/hill representation, while Article 371F managed Sikkim's integration.

Analysis: These provisions reduce fears of cultural absorption, protect vulnerable resources and make Union membership compatible with local autonomy.

Qualification: [LIMIT] Asymmetry may create insider-outsider barriers or patronage if safeguards lack accountability.

Verdict: It strengthens unity when protection is purposeful, locally participatory and reviewable. Constitutional difference is then an instrument of integration, not separate sovereignty.

Why this earns marks: It defines asymmetry, classifies distinct Article 371 mechanisms and balances integration benefits against exclusion risks.

How to improve this answer: Use one example each for consent, committee and development models; remove generic praise of diversity.

M2. Critically examine the 2019 changes to Article 370 in light of the 2023 Supreme Court judgment. (15 marks, 250 words)

Model answer

Claim: [FACT] The 2019 process ended Article 370's operative autonomy; the 2023 Constitution Bench upheld the result by treating the Article as temporary and presidential power as continuing.

Mechanism: C.O. 272 applied the Constitution and altered the interpretive route; parliamentary action during President's Rule supported C.O. 273's Article 370(3) declaration. The Reorganisation Act created J&K and Ladakh Union Territories.

Judgment: *In re Article 370* held that J&K retained no separate internal sovereignty, Article 370 was temporary and the President's power survived dissolution of the Constituent Assembly. It found it unnecessary to make the contested Article 367 route essential to validity.

Critique: Integration and uniform rights are advanced; however, using President's Rule when the affected State had no elected voice raises federal-consent concerns.

Qualification: [LIMIT] The Court did not finally decide the validity of converting J&K into a UT; Statehood remains pending.

Verdict: Abrogation is judicially settled, but federal legitimacy requires timely Statehood restoration and representative consultation.

Why this earns marks: It separates the 2019 instruments, states the controlling 2023 holdings and preserves the unresolved reorganisation question.

How to improve this answer: For 250 words, use four labelled paragraphs-mechanism, holding, federal critique, qualified verdict-and avoid saying Article 370 was deleted.

M3. Compare Articles 371A and 371G. (10 marks, 150 words)

Model answer

Claim: [FACT] Articles 371A and 371G are the strongest Part XXI identity safeguards because specified parliamentary laws do not automatically apply without State Assembly decision.

Common fields: religious/social practices, customary law and procedure, customary administration of civil/criminal justice, and land ownership/transfer are protected in Nagaland and Mizoram respectively.

Differences: Article 371A contains Nagaland-specific Tuensang and law-and-order arrangements; Article 371G is tied to Mizoram's settlement framework and fixes a minimum Assembly strength of 40.

Analysis: Both convert cultural protection into a legal consent mechanism rather than a merely advisory promise.

Qualification: [LIMIT] The shield is subject-specific, not a general veto over Parliament.

Verdict: They demonstrate integration through protected custom and land, with State legislatures acting as constitutional consent institutions.

Why this earns marks: It compares protected subjects and isolates Nagaland-specific law-order/Tuensang features from Mizoram's minimum Assembly rule.

How to improve this answer: Present similarities and differences in a compact matrix, then add the subject-specific-veto limitation.

M4. Does differentiated regional protection conflict with single citizenship and equality?

Examine. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Special regional rights create differentiated entitlements but do not create separate Indian citizenships.

Conflict: Land, employment and customary-law protections may restrict equal mobility and produce insider-outsider distinctions. Historical Article 35A and current Articles 371A/G are prominent examples.

Justification: Formal sameness can expose small indigenous communities and backward regions to dispossession or permanent disadvantage. Articles 371, 371J and tribal schedules pursue substantive equality, identity and balanced development.

Constitutional balance: Article 14 permits reasonable classification, federalism permits tailored design and judicial review controls arbitrariness. Local minorities and accountability must also be protected.

Qualification: [LIMIT] A protective purpose does not justify every restriction indefinitely.

Verdict: Differentiation is compatible with single citizenship where it is constitutionally authorised, proportionate and connected to vulnerability; it becomes problematic when it hardens into unreviewable exclusion.

Why this earns marks: It frames the equality tension through substantive equality, constitutional authorisation and proportionality rather than treating every preference as valid.

How to improve this answer: Add a local-minority safeguard and distinguish separate citizenship from differentiated entitlements.

M5. Compare Article 371 protections with the Fifth and Sixth Schedules. (15 marks, 250 words)

Model answer

Claim: [FACT] All three protect diversity, but they operate through different units and institutions.

Article 371 family: State-specific arrangements in Part XXI. They range from development boards and local reservations to Assembly consent over custom and land.

Fifth Schedule: Article 244 creates supervised protection in Scheduled Areas. The President declares areas; the Governor reports, modifies laws and makes land/money-lending regulations subject to presidential assent; the TAC advises.

Sixth Schedule: Autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram exercise specified legislative, judicial and fiscal powers.

Analysis: Article 371 protects through the State Constitution relationship; the Fifth protects through guardianship; the Sixth decentralises self-government.

Qualification: [LIMIT] Overlap of geography or purpose does not merge legal powers.

Verdict: The choice between the mechanisms reflects the depth of autonomy sought: tailored State protection, supervised Scheduled-Area administration or autonomous tribal government.

Why this earns marks: It compares constitutional location, territorial unit, institutions and depth of autonomy, preventing a common Schedule/Article confusion.

How to improve this answer: Draw a three-column mechanism table and reserve the final two lines for why the Constitution chooses different depths of autonomy.

M6. Assess the constitutional and political case for Sixth Schedule protection in Ladakh. (15 marks, 250 words)

Model answer

Claim: [CURRENT] Ladakh's Sixth Schedule demand seeks enforceable protection for tribal identity, land, jobs, ecology and local decision-making after its conversion into a UT without legislature.

Case for: A predominantly tribal and ecologically fragile region faces rapid development and limited representative law-making. Autonomous councils with specified legislative and fiscal powers could deepen local consent and protect resources.

Concerns: Ladakh's strategic border location, existing Hill Councils, inter-regional Leh-Kargil differences and the Sixth Schedule's original north-eastern design require careful institutional adaptation.

Alternatives: Statehood, a UT legislature, stronger Hill Councils or Article 371-type safeguards may address some demands, but differ in legal strength and scope.

Current status: [CURRENT] No Sixth Schedule or Statehood change has been enacted by 28 August 2026.

Verdict: The demand deserves negotiated constitutional protection, but the model should preserve national security while granting real land, employment and democratic safeguards rather than symbolic consultation.

Why this earns marks: It treats Ladakh as a live but unenacted demand, compares institutional alternatives and balances ecology, representation and security.

How to improve this answer: Avoid predicting settlement; state the exact current status and specify which Sixth Schedule powers would answer which grievance.

M7. "The unresolved Statehood question is now more important than the settled Article 370 question." Comment. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] The legality of Article 370's inoperability is settled by the 2023 judgment, while J&K's federal status remains institutionally unfinished.

Settled dimension: The Court held Article 370 temporary, rejected separate internal sovereignty and upheld the presidential declaration. Elections were directed and held in 2024.

Unresolved dimension: J&K remains a UT. The Court recorded the Union's assurance of Statehood at the earliest but fixed no deadline and avoided deciding the validity of the State-to-UT conversion.

Why it matters: Statehood affects federal representation, legislative competence, executive authority, policing and the symbolic equality of J&K with other States. An elected UT Assembly restores democracy but not full federal autonomy.

Counterpoint: Security, administrative transition and parliamentary control may justify sequencing.

Qualification: [LIMIT] Pending restoration does not reopen Article 370 automatically.

Verdict: The constitutional task has shifted from adjudicating special status to completing representative federal normalisation through a clear, credible Statehood process.

Why this earns marks: It distinguishes a judicially settled operability question from an unresolved federal-status question and explains the consequences of Statehood.

How to improve this answer: Use the phrase "no judicial statehood deadline," then compress security counterarguments into one qualified paragraph.

M8. Evaluate whether regional-development clauses under Articles 371 and 371J deliver substantive federal equality. (20 marks, 250 words)

Model answer

Claim: [FACT] Articles 371 and 371J address inequality within States rather than autonomy between Union and State.

Design: Article 371 supports development boards, reporting, equitable development expenditure and opportunity for identified regions of Maharashtra and Gujarat. Article 371J creates a development board and local education/employment measures for Kalyana Karnataka.

Strength: Constitutional recognition prevents backward regions from disappearing inside State-wide averages and can direct funds, seats and posts toward persistent disadvantage.

Weakness: Boards may become advisory, data may be opaque, local reservation can face implementation disputes and constitutional labels cannot substitute for budgets or administrative capacity.

Reform: publish region-wise outcome indicators, link allocations to deprivation, conduct independent audits, preserve merit through capacity-building and involve local elected bodies.

Qualification: [LIMIT] Region-based preference must remain proportionate and periodically evaluated.

Verdict: These clauses can realise substantive federal equality only when constitutional recognition is converted into measurable development rather than permanent political symbolism.

Why this earns marks: It links constitutional design to measurable regional outcomes and supplies implementation reforms instead of assuming a board guarantees development.

How to improve this answer: Name the Presidential/Governor mechanism and evaluate allocations, vacancies and educational outcomes with dated State data if available.

M9. Explain how amendment origins and constitutional actors shape the Article 371 family. (10 marks, 150 words)

Model answer

Claim: [FACT] Articles 371A-371J were added through different Statehood and reorganisation settlements, so their constitutional actors and mechanisms vary.

Evidence: The 13th Amendment created Nagaland's Assembly-consent shield; the 22nd and 27th created Assam and Manipur committee/reporting models; the 32nd authorised Presidential orders for Andhra Pradesh and later Telangana; the 36th integrated Sikkim; the 53rd-56th addressed Mizoram, Arunachal Pradesh and Goa; the 98th created Karnataka's regional-equity model.

Analysis: Assembly resolution protects custom in 371A/G; Presidential orders structure committees, local opportunity or Governor responsibility elsewhere. The actor therefore reveals the depth and purpose of asymmetry.

Qualification: [LIMIT] These are subject-specific arrangements, not separate sovereignty.

Verdict: The family is a spectrum of negotiated constitutional techniques, not one uniform "special status."

Why this earns marks: It converts amendment chronology into a functional comparison of Assembly consent, Presidential order and Governor responsibility.

How to improve this answer: Memorise the amendment ladder and write State -> Article -> amendment -> actor -> protected interest as a five-column mini-table.